

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SHAMEEK SUGGS,

Plaintiff,

-against-

DETECTIVE LAWRENCE HOTALING, Tax No. 897695,
SERGEANT STEPHEN VOLPE, Tax No. 939667, and
SERGEANT JULIO ACURIA, Tax No. 933593,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates KINGS
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, when service is made by delivery upon you personally within the state, or, within 30 days after completion of service when service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 16, 2020

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: DETECTIVE LAWRENCE HOTALING, Tax No. 897695, Criminal Intelligence
Section, One Police Plaza, Room 1108, NY, NY
SERGEANT STEPHEN VOLPE, Tax No. 939667, Criminal Intelligence Section, One
Police Plaza, Room 1108, NY, NY
SERGEANT JULIO ACURIA, Tax No. 933593, 84th Precinct, 301 Gold St, Brooklyn,
NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
SHAMEEK SUGGS,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

DETECTIVE LAWRENCE HOTALING, Tax No. 897695,
SERGEANT STEPHEN VOLPE, Tax No. 939667, and
SERGEANT JULIO ACURIA, Tax No. 933593,

JURY TRIAL DEMANDED

Defendants.
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Plaintiff, SHAMEEK SUGGS, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On June 26, 2017, at approximately 8:30 p.m., plaintiff Shameek Suggs was lawfully present inside of his friend's apartment located at 233 Sands Street, Apt. 3K, Brooklyn, New York, when the defendant police officers unlawfully entered the apartment, handcuffed and arrested plaintiff without probable cause or any legal justification. The defendants unlawfully seized, unlawfully handcuffed, falsely imprisoned and falsely arrested plaintiff without probable cause or any legal justification to believe plaintiff committed a crime or violated the law in any manner. Plaintiff was then transported to the 84th Precinct where he was unlawfully strip searched. Thereafter, the defendants denied plaintiff the right to due process and a fair trial until all charges against plaintiff were dismissed and sealed on December 18, 2018. Plaintiff was deprived of his constitutional when the individual defendants unlawfully searched, confined, arrested, imprisoned, denied him rights to a fair trial, and unlawfully stripped searched plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff SHAMEEK SUGGS is and was at all times relevant herein a resident of the State of New York.

3. DETECTIVE LAWRENCE HOTALING, Tax No. 897695, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE LAWRENCE HOTALING, Tax No. 897695, is and was at all times relevant herein, assigned to the Criminal Intelligence Section.

5. DETECTIVE LAWRENCE HOTALING, Tax No. 897695, is being sued in his individual and official capacity.

6. SERGEANT STEPHEN VOLPE, Tax No. 939667, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT STEPHEN VOLPE, Tax No. 939667, was at all times relevant herein, assigned to the Criminal Intelligence Section.

8. SERGEANT STEPHEN VOLPE, Tax No. 939667, is being sued in his individual and official capacity.

9. SERGEANT JULIO ACURIA, Tax No. 933593, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT JULIO ACURIA, Tax No. 933593, was at all times relevant herein, assigned to the Criminal Intelligence Section.

11. SERGEANT JULIO ACURIA, Tax No. 933593, is being sued in his individual and official capacity.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

13. At all times relevant herein, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

14. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. By way of background, on June 26, 2017, at approximately 8:30 p.m., the defendant police officers allegedly executed a search warrant inside of plaintiff's friend's apartment located at 233 Sands Street, Apt. 3K, Brooklyn, New York.

18. Notably, on June 26, 2017, plaintiff did not reside at 233 Sands Street, Apt. 3K, Brooklyn, New York and plaintiff was not the target of the search warrant.

19. Upon entering the apartment, the defendant police officer asked plaintiff if he lived at the apartment and plaintiff showed the defendant officers his identification indicating he did not reside in the apartment.

20. Despite being aware of the fact that plaintiff did not reside at 233 Sands Street, Apt. 3K, Brooklyn, New York, the defendant police nevertheless unlawfully handcuffed plaintiff and arrested him without probable cause or legal justification.

21. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's person, or from a location that was in plaintiff's possession, custody, or control.

22. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe he committed a crime or violated the law.

23. Nevertheless, plaintiff was unlawfully handcuffed and transported against his will to the 84th precinct where he was searched, photographed, fingerprinted, and detained in a filthy holding cell for many hours.

24. Thereafter, the defendant police officers conducted an invasive and unlawful strip search of plaintiff without reasonable suspicion or probable cause.

25. Specifically, plaintiff was forced to take off all of his clothes and shake each piece of clothing out.

26. Plaintiff was then ordered to turn around, and with his back facing the defendant police officers, plaintiff was forced to bend over and spread his buttocks and lift his genitals.

27. Notably, at no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

28. On June 27, 2017 at approximately 3:00 a.m., plaintiff was transported from the 84th Precinct to Brooklyn Central Booking and was placed in a holding cell.

29. The defendant police officers intentionally provided the Kings County District Attorney's Office with false, misleading and incomplete information regarding their basis for arresting and prosecuting plaintiff and falsely charged plaintiff with crimes he did not commit.

30. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

31. On June 27, 2017, at approximately 8:30 p.m., after approximately 24 hours in unlawful custody, plaintiff was arraigned in Brooklyn Criminal Court and charged with crimes he did not commit.

32. Plaintiff was Criminal Possession of a Controlled Substance in the Seventh Degree.

33. On June 27, 2017, at approximately 8:30 p.m., after approximately 24 hours in custody, plaintiff was released on his own recognizance.

34. Thereafter, plaintiff was required to make approximately ten (10) additional court appearances until all charges against plaintiff were dismissed and sealed in their entirety on December 18, 2018.

35. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest, denial of the right to due process/ fair trial and illegal strip search of plaintiff.

36. The unlawful search, false arrest/ imprisonment, denial of a right to fair trial, and illegal strip search of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied of his right to fair trial without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of his right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The illegal approach, pursuit, stop and search employed by defendants hereinafter terminated plaintiff's freedom of movement through means intentionally applied.

46. Defendants lacked probable cause to search plaintiff.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

51. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

52. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

53. In withholding/creating false evidence against plaintiff Shameek Suggs, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

54. As a result of the foregoing, plaintiff Shameek Suggs, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Unlawful Strip Search

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. Plaintiff was strip-searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

60. As a result of the foregoing, plaintiff was deprived of his Constitutional rights

SIXTH CAUSE OF ACTION

Failure to Intervene

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

63. Defendants failed to intervene to prevent the unlawful conduct described herein.

64. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

JURY DEMAND

PRAYER FOR RELIEF

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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 16, 2020

/s/
STUART E. JACOBS